Niraj Kumar Mandal vs Govt Of Nct Delhi Anr on 19 January, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ CRL.M.C. 7243/2023, CRL.M.A. 27025/2023
NIRAJ KUMAR MANDAL
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versus
GOVT OF NCT DELHI ANR
Through: Ms. Manjeet Arya,
SI Sandeep Saini
Saket, ND.
CORAM:
HON'BLE MR. JUSTICE MANOJ KUMAR OHRI
ORDER

% 19.01.2024

1. The present petition has been filed under Section 482 Cr.P.C. seeking quashing of FIR No. 018/2023 registered under Section 419, 420 IPC & 66 IT Act at Police Station Cyber-South, Delhi on the ground that the parties have amicably settled their disputes.

2. The allegations in the FIR pertain to an internet banking fraud. Learned APP for the State, on instructions, submits that as per the memo of parties the petitioner is the only accused person and respondent No. 2 is the only complainant/victim. He further submits that the charge has already been framed in the present case.

3. Learned counsel appearing for both the parties state that the parties have entered into an amicable settlement pursuant to which, during the bail proceedings on 04.07.2023, the entire cheated amount of Rs. 6,91,696/- was deposited before the Court of learned CMM, South-East District, Saket This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 25/01/2024 at 01:42:59 Court, New Delhi. Copy of bail order has also been placed on records as per which 75% of the deposited amount was also released to the petitioner.

4. Learned counsel for the petitioner states that the petitioner has no objection in case the remaining 25% of the cheated amount deposited is also released to the respondent no. 2. He states

that the petitioner would take steps and facilitate the complaint/respondent no. 2 in release of the remaining 25% cheated amount.

5. Learned counsel for the respondent no. 2 on instructions of respondent no. 2, who has also joined the proceedings, states that the respondent no. 2 acknowledges the factum of settlement and further has no objection in case the FIR in question is quashed. Respondent no. 2 is also identified by the IO present in Court.

6. Respondent No. 2 further states that she has entered into the aforesaid settlement out of her own free will, volition and without any coercion.

7. Considering that the parties have agreed an amicable settlement, pursuant to which 75% of the cheated amount stands released, subject to the petitioner taking steps for release of the remaining 25% amount to the respondent no. 2, the FIR is quashed.

8. The parties shall remain bound by the statements made in Court today.

9. With the above directions, the petition is disposed of alongwith pending application.

MANOJ KUMAR OHRI, J JANUARY 19, 2024/akc This is a digitally signed order.

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